

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: _____

-----X
ERIC HOLDER,

INDEX NO.

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

S U M M O N S

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER AAQIB I. BHATTI
and POLICE OFFICERS "JOHN DOE #1-10",
First and Last Names Being Fictitious and Unknown,

The basis of venue is the county in
which the cause of action arose

Defendants.

-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
January 10, 2024



By: Robert L. Rose, Esq.
LEAV & STEINBERG, L.L.P.

Attorneys for Plaintiff

ERIC HOLDER

75 Broad Street, Suite 1601
New York, New York 10004
Tel. No.: (212) 766-5222

SEE ATTACHED RIDER

RIDER

**THE CITY OF NEW YORK
100 Church Street, 4th Floor, Communications Unit
New York, New York 10007**

**NEW YORK CITY POLICE DEPARTMENT
100 Church Street, 4th Floor, Communications Unit
New York, New York 10007**

**POLICE OFFICER AAQIB I. BHATTI
c/o NEW YORK CITY POLICE DEPARTMENT
100 Church Street, 4th Floor, Communications Unit
New York, New York 10007**

**POLICE OFFICERS “JOHN DOE #1-10”
c/o NEW YORK CITY POLICE DEPARTMENT
100 Church Street, 4th Floor, Communications Unit
New York, New York 10007**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ERIC HOLDER,

INDEX NO.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER AAQIB I.
BHATTI and POLICE OFFICERS "JOHN DOE #1-10",
First and Last Names Being Fictitious and Unknown,

Defendants.
-----X

Plaintiff ERIC HOLDER, by his attorneys, **LEAV & STEINBERG, L.L.P.**, as and for
his Verified Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF ERIC HOLDER

1. The plaintiff, ERIC HOLDER, at all times herein mentioned was and still is a
resident of the County of Kings, City of Brooklyn and the State of New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK was and
still is a municipal corporation duly organized and existing under and by virtue of the laws of the
State of New York.

3. At all times herein mentioned, defendant THE NEW YORK CITY POLICE
DEPARTMENT was and still is a corporation duly organized and existing under and by virtue of
the laws of the State of New York.

4. At all times herein mentioned, defendant THE NEW YORK CITY POLICE
DEPARTMENT was and still is a public authority and/or agency duly organized and existing
under and by virtue of the laws of the State of New York.

5. Prior to the commencement of this action, a notice of claim in writing was served on defendant THE CITY OF NEW YORK on behalf of plaintiff ERIC HOLDER, in accordance with Section 50-e of the General Municipal Law.

6. The plaintiff ERIC HOLDER duly presented and served upon defendant THE CITY OF NEW YORK his Notice of Claim and Demand for Adjustment of Damages by serving and filing upon said defendant within ninety days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

7. That although more than thirty days have elapsed since the presentation and service of said Notice of Claim and Demand for Adjustment of Damages, defendant THE CITY OF NEW YORK has failed to make any adjustments and/or payments of said claim.

8. Prior to the commencement of this action, a notice of claim in writing was served on defendant THE NEW YORK CITY POLICE DEPARTMENT on behalf of plaintiff ERIC HOLDER, in accordance with Section 50-e of the General Municipal Law.

9. The plaintiff ERIC HOLDER duly presented and served upon defendant THE NEW YORK CITY POLICE DEPARTMENT his Notice of Claim and Demand for Adjustment of Damages by serving and filing upon said defendant within ninety days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

10. That although more than thirty days have elapsed since the presentation and service of said Notice of Claim and Demand for Adjustment of Damages, defendant THE NEW YORK CITY POLICE DEPARTMENT has failed to make any adjustments and/or payments of said claim.

11. The oral examination of plaintiff ERIC HOLDER, pursuant to Section 50-h of the General Municipal Law, was conducted by defendants THE CITY OF NEW YORK and THE

NEW YORK CITY POLICE DEPARTMENT on June 30, 2023.

12. That this action is commenced within one year and ninety days of the date of the accrual of plaintiff's claims.

13. At all times herein mentioned, defendant THE CITY OF NEW YORK operated, managed and controlled defendant THE NEW YORK CITY POLICE DEPARTMENT.

14. At all times herein mentioned, defendant THE CITY OF NEW YORK operated the defendant THE NEW YORK CITY POLICE DEPARTMENT as part of and in conjunction with its municipal function.

15. At all times herein mentioned, defendant THE CITY OF NEW YORK employed police officers.

16. At all times herein mentioned, defendant THE CITY OF NEW YORK supervised the defendant NEW YORK CITY POLICE DEPARTMENT.

17. At all times herein mentioned, defendant THE CITY OF NEW YORK supervised the defendant NEW YORK CITY POLICE DEPARTMENT and its personnel.

18. At all times herein mentioned, defendant THE CITY OF NEW YORK supervised the defendant NEW YORK CITY POLICE DEPARTMENT, its personnel, including its police officers.

19. At all times herein mentioned, defendant THE CITY OF NEW YORK supervised the defendant NEW YORK CITY POLICE DEPARTMENT, its personnel, including defendant AAQIB I. BHATTI.

20. At all times herein mentioned, defendant THE CITY OF NEW YORK supervised the defendant NEW YORK CITY POLICE DEPARTMENT, its personnel, including defendants POLICE OFFICER AAQIB I. BHATTI and POLICE OFFICERS "JOHN/JANE DOE #1-10",

First and Last Names Being Fictitious and Unknown (hereinafter referred to as “POLICE OFFICERS JOHN/JANE DOE #1-10”).

21. At all times herein mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT employed police officers.

22. At all times herein mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT supervised its personnel.

23. At all times herein mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT supervised its personnel, including its police officers.

24. At all times herein mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT supervised its personnel, including defendant AAQIB I. BHATTI.

25. At all times herein mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT supervised its personnel, including defendants POLICE OFFICERS JOHN/JANE DOE #1-10.

26. At all times herein mentioned, defendant AAQIB I. BHATTI was an employee of defendant THE CITY OF NEW YORK.

27. At all times herein mentioned, defendant AAQIB I. BHATTI was an employee of defendant THE NEW YORK CITY POLICE DEPARTMENT.

28. At all times herein mentioned, defendants POLICE OFFICERS JOHN/JANE DOE #1-10 were employees of defendant THE CITY OF NEW YORK.

29. At all times herein mentioned, defendants POLICE OFFICERS JOHN/JANE DOE #1-10 were employees of defendant THE NEW YORK CITY POLICE DEPARTMENT.

30. At all times herein mentioned, defendant AAQIB I. BHATTI was in the course and scope of his employment with defendant THE CITY OF NEW YORK.

31. At all times herein mentioned, defendant AAQIB I. BHATTI was in the course and scope of his employment with defendant THE NEW YORK CITY POLICE DEPARTMENT.

32. At all times herein mentioned, defendants POLICE OFFICERS JOHN/JANE DOE #1-10 were in the course and scope of their employment with defendant THE CITY OF NEW YORK.

33. At all times herein mentioned, defendants POLICE OFFICERS JOHN/JANE DOE #1-10 were in the course and scope of their employment with defendant THE NEW YORK CITY POLICE DEPARTMENT.

34. At all times herein mentioned, defendant AAQIB I. BHATTI was in the course and scope of his employment with the defendant THE CITY OF NEW YORK, working within the knowledge, authority, permission and consent of defendant THE NEW YORK CITY POLICE DEPARTMENT.

35. At all times herein mentioned, defendants POLICE OFFICERS JOHN/JANE DOE #1-10 were in the course and scope of their employment with the defendant THE CITY OF NEW YORK, working within the knowledge, authority, permission and consent of defendant THE NEW YORK CITY POLICE DEPARTMENT.

36. On December 18, 2022, defendant AAQIB I. BHATTI was assigned and working at the 071st Precinct.

37. The plaintiff was injured as a result of the negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees.

38. At all times herein mentioned, defendants had the duty to ensure that their agents, servants and/or employees, more particularly defendants AAQIB I. BHATTI, POLICE

OFFICERS JOHN/JANE DOE #1-10 and other police officers conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently causing personal injuries to civilians, including the plaintiff herein.

39. At all times herein mentioned, defendants' agents, servants and/or employees, more particularly their police officers had the duty to ensure that their actions, activities and behavior conform to a certain standard of conduct established by law for the protection of civilians and others against unreasonable risk of harm.

40. On or about December 18, 2022, plaintiff was lawfully present in front of or near his residence on the premises of 1171 President Street, in the Brooklyn, New York.

41. At the aforesaid date and in front of or near of the premises of 1171 President Street, in the Brooklyn, New York, defendants THE NEW YORK CITY POLICE DEPARTMENT, AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10 and other police officer personnel of defendants were present.

42. At the aforesaid date and in front of or near of the premises of 1171 President Street, in the Brooklyn, New York, defendants THE NEW YORK CITY POLICE DEPARTMENT, AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10 and other police officer personnel were present in the course and scope of their employment with defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

43. At the aforesaid date and in front of or near of the premises of 1171 President Street, in the Brooklyn, New York, defendants THE NEW YORK CITY POLICE DEPARTMENT, AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10 and other police officer personnel, were present with the knowledge, authority, permission and consent of

defendants THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.

44. At the aforesaid date and in front of or near of the premises of 1171 President Street, in the Brooklyn, New York, plaintiff was assaulted, battered, arrested, detained, imprisoned, had his property unlawful searched and seized, and detained by certain police officers and/or other New York City personnel, including but not limited to, defendants AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10 without just cause or provocation.

45. At the aforesaid date and in front of or near of the premises of 1171 President Street, in the Brooklyn, New York, plaintiff was violently, forcibly, improperly shoved, pushed, thrown, punched in his face and then false arrest, false imprisonment, false detainment about at the aforesaid premises by defendants AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10, other police officers and/or other New York City personnel without just cause or provocation.

46. That on December 18, 2022, plaintiff was wantonly, intentionally, maliciously, illegally and brutally assaulted, attacked and violently shoved, thrown, punched in his face and battered by defendants AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10 other police officers and/or other New York City personnel who used excessive force and violence in their handling and dealing with the plaintiff without just cause or provocation.

47. Subsequent to the above occurrence, on or about December 18, 2022, plaintiff was detained by the defendants without legal cause at the 071st Precinct located in Brooklyn, New York.

48. At the aforesaid date and within the 071st Precinct, in the Brooklyn, New York,

plaintiff was assaulted, battered, arrested, detained imprisoned, had his property unlawful searched and seized, and detained by certain police officers and/or other New York City personnel, including but not limited to, defendants AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10 without just cause or provocation.

49. That by reason of the foregoing plaintiff was seriously and permanently injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur, further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

50. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

51. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERIC HOLDER

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

53. That at all times herein mentioned, defendants negligently failed to provide for

the safety, security and protection of the plaintiff.

54. At all times herein mentioned, defendants negligently failed to prevent the within incident of extraordinary violence by their police officers, particularly defendants AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10 and/or other New York City personnel who were acting within the course and scope of their employment for the defendants herein.

55. That by reason of the foregoing, plaintiff was severely and permanently injured.

56. The foregoing occurrences and the resultant injuries to the plaintiff were caused solely by reason of the carelessness, negligence, failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of the defendants, their agents, servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.

57. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERIC HOLDER**

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in the Second Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

59. At all times herein mentioned, it was the duty of defendants to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

60. At all times herein mentioned, it was the duty of said defendants to properly train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties activities and behaviors of its agents, servants and/or personnel.

61. That by reason of the negligence of defendant in its hiring, monitoring and retention of said employees with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of its duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

62. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERIC HOLDER

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in the Third Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

64. That on December 18, 2022, at approximately 12:30 - 1:00 A.M. on the premises in 071st Precinct, Plaintiff ERIC HOLDER was without investigation, property unlawful searched and seized without a warrant, restrained and wrongfully and falsely arrested, detained imprisoned by defendants AAQIB I. BHATTI, POLICE OFFICERS JOHN/JANE DOE #1-10.

65. The aforesaid was committed by the defendants upon the plaintiff with his awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege

of law.

66. The subject NEW YORK CITY POLICE DEPARTMEsNT officer was acting within the scope of their employment as an officer of the defendant THE CITY OF NEW YORK and acting under the color of law.

67. At no time did ERIC HOLDER resist arrest.

68. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges were false.

69. That December 18, 2022, the defendants, their agents, servants and/or employees, acted with intent to imprison the plaintiff.

70. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.

71. That the Plaintiff, without his consent or just cause, was taken into custody on December 18, 2022, at approximately 12:30 - 1:00 A.M.

72. The plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and still suffers and will continue for some time to come to suffer physical, emotional and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.

73. That the plaintiff continues to receive medical assistance in an effort to heal his injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.

74. As a result of the foregoing by the aforesaid defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that

exceeds the jurisdictional limits of all lower courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ERIC HOLDER

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in the Fourth Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

76. At all times mentioned herein and above, Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT employees defendants AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10 as a police officer and was acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

77. Plaintiff ERIC HOLDER is and at all times relevant herein, a citizen of the United States and a resident of Kings County in the State of New York and brings this cause of action pursuant to 42 USC SS 1981, 1983 and 1985 for deprivation of Claimant's federal civil rights under color of state law.

78. That on or about December 18, 2022, Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and defendants AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10, without probable cause, reasonable cause or legal justification, did physically violently, forcibly, improperly shoved, pushed, thrown, punched in the face without a court authorized false arrest, false imprisonment, false detainment and defendants did physically attack, assault, battered Plaintiff ERIC HOLDER in an unlawful and excessive manner.

79. That on the aforementioned dates and places, the above actions of the defendants

AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10, acting within scope of their employment as an NEW YORK CITY POLICE DEPARTMENT officer, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- i. Freedom from assault;
- ii. Freedom from battery;
- iii. Freedom from illegal search and seizure;
- iv. Freedom from false arrest;
- v. Freedom from malicious prosecution;
- vi. Freedom from the use of excessive force during the arrest process;
- vii. Freedom from unlawful imprisonment;
- viii. Freedom from summary punishment;
- ix. Freedom from cruel and unusual punishment;
- x. Freedom from loss of liberty; and
- xi. Freedom from illegal search.
- xii. Freedom from deprivation of constitutional rights including but not limited to Fourth, Fifth, and Fourteenth Amendments

80. In addition to the above, Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct their police officers, including the officers involved in this case and any and all unnamed officers involved in the physically assaulted, battery, excessive force of plaintiff, regarding the protection of the constitutional rights of citizens.

81. Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10, subjected Plaintiff ERIC HOLDER to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff ERIC HOLDER's rights and with deliberate indifference to the United States Constitution.

82. The direct and proximate result of the Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, AAQIB I. BHATTI and POLICE OFFICERS JOHN/JANE DOE #1-10 acts are that Plaintiff ERIC HOLDER has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

83. That by reason of the foregoing, Plaintiff ERIC HOLDER has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

WHEREFORE, the plaintiff demands judgment awarding damages on the First, Second, Third, Fourth, Fifth Causes of Action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, plus interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
January 10, 2024



By: Robert L. Rose, Esq.
LEAV & STEINBERG, L.L.P.

Attorneys for Plaintiff

ERIC HOLDER

75 Broad Street, Suite 1601
New York, New York 10004
Tel. No.: (212) 766-5222
Our File No.: 2310065

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ERIC HOLDER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER AAQIB I. BHATTI
and POLICE OFFICERS "JOHN DOE #1-10", First and Last
Names Being Fictitious and Unknown,

Defendants.

INDEX NO.

**ATTORNEY'S
VERIFICATION**

ROBERT L. ROSE, ESQ., an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am an attorney with the firm of LEAV & STEINBERG, L.L.P., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
January 10, 2024



ROBERT L. ROSE, ESQ.
LEAV & STEINBERG, L.L.P.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
AAQIB I. BHATTI and POLICE OFFICERS “JOHN DOE #1-10”, First and Last Names Being
Fictitious and Unknown,

Defendants.

SUMMONS and VERIFIED COMPLAINT

LEAV & STEINBERG, L.L.P.

Attorneys for Plaintiff

75 Broad Street, Suite 1601

New York, New York 10004

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